

25STCV04034 25STCV04034

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV04034 Hearing Date: July 2, 2026 Dept: 731

SUPERIOR COURT OF CALIFORNIA

COUNTY OF LOS ANGELES

DEPARTMENT 731

TENTATIVE

RULING

DAVID E. MOCH, et al.,

Plaintiffs,

v.

GIORA AGAM, et al.,

Defendants.

Case No:

25STCV04034

Hearing Date: July 2, 2026

Calendar Number: 8

Defendants Giora Agam and Agam Properties, Inc. move for reconsideration of the Court's May 5, 2026 order denying their motions to

compel responses to form interrogatories, special interrogatories, and requests for production.

Defendants' motion for reconsideration is DENIED. The Court reconsiders the May 5, 2026 ruling as to Defendants' motions to compel responses on its own motion and GRANTS the motions to compel Plaintiffs David E. Moch, David J. Moch, Aaron Moch, Jeremy Moch, and Jordan Moch's responses to form interrogatories, special interrogatories, and requests for production.

Plaintiffs are ordered to provide verified responses to the discovery at issue within 20 days of this order.

Defendants' request for sanctions is granted. Plaintiffs David E. Moch, David J. Moch, Aaron Moch, Jeremy Moch and Jordan Moch are each ordered to pay \$1,060, to Defendants' counsel within 20 days of this order.

Background

This is a landlord-tenant case. Plaintiffs David E. Moch, David J. Moch, Aaron Moch, and minors Jeremy Moch, and Jordan Moch ("Plaintiffs") initiated this action on February 11, 2025, against Defendants Giora Agam and Agam Properties, Inc. ("Defendants").

On August 21, 2025, Plaintiffs filed the First Amended Complaint, alleging causes of action for: (1) breach of contract/covenant of quiet enjoyment/warranty of habitability; (2) tortious breach of the implied warranty of habitability; (3) negligence; (4) unfair business practices; (5) tenant harassment; and (6) wrongful eviction.

On May 5, 2026, the Court denied Defendants' motions to compel Plaintiffs' responses to form interrogatories, special interrogatories, and requests for production on the ground that Plaintiffs timely responded by providing objection only responses.

On May 14, 2026, Defendants filed this motion for reconsideration. No opposition has been filed.

On June 2, and June 18, 2026, Plaintiffs' counsel's motions to be relieved as counsel were granted.

Legal Standard

Code of Civil Procedure Section 1008(a) provides that

“[w]hen an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order . . . [may] make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (Code Civ. Proc., § 1008(a).) A trial court has discretion with respect to granting a motion for reconsideration. (New York Times Co. v. Superior Court (2005) 135 Cal.App.4th 206, 212.)

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A court acts in excess of jurisdiction when it grants a motion to reconsider that is not based upon “new or different facts, circumstances or law.” (Gilberd v. AC Transit (1995) 32 Cal.App.4th 1494, 1499.)۞ Motions for reconsideration are restricted to circumstances where a party offers the Court some fact or circumstance not previously considered, and some valid reason for not offering it earlier.۞ (Id.)۞۞۞۞

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Moreover, there is a strict requirement of diligence, which means the moving party must present a satisfactory explanation for failing to provide the evidence or different facts earlier.۞ (Garcia v. Hejmadi (1997) 58 Cal.App.4th 674, 690.)۞ The burden under Cal. Code Civ. Proc. § 1008 is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at trial.۞ (New York Times Co. v. Superior Court (2005) 135 Cal.App.4th 206, 212-213.)۞۞

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New circumstances can be shown by evidence that the court failed

to consider a timely-filed memorandum of points and authorities in its prior ruling. (Johnston v. Corrigan (2005) 127 Cal.App.4th 553, 556.)

Discussion

Defendants move for reconsideration of the Court's May 5, 2026 order denying their motion to compel Plaintiffs' responses to discovery, based on alleged new or different law that was not analyzed in the Court's order. Specifically, Defendants argue that in *Masimo Corp. v. The Vanderpool Law Firm, Inc.* (2024) 101 Cal.App.5th 902, the court granted Plaintiff's Motions to Compel, stating that Defendant's responses to Special Interrogatories and Request for Production of Documents consisted solely of boilerplate objections with no responses. Defendants contend that *Masimo* states that objections, even if properly asserted and signed, cannot substitute the responding party's obligation to provide responses to each request.

Defendants

have not shown new or different facts, circumstances or law. "[F]acts of which the party seeking reconsideration was aware at the

time of the original ruling are not 'new or different.'" (*In re Marriage of Herr* (2009) 174 Cal.App.4th 1463, 1468 [citing *Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 690].) Disagreement with a ruling is not a new fact that will support the granting of a motion for reconsideration. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.)

The *Masimo* opinion was published in 2024. Thus, it existed at the time Defendants filed their motion, and is therefore not new law.

Further, Defendants must show diligence. Defendants have not explained why they did not cite to *Masimo Corp. v. The Vanderpool Law Firm, Inc.* (2024) 101 Cal.App.5th 902 in their motions to compel Plaintiffs' responses.

Therefore, Defendants' motion for reconsideration under section 1008(a) is denied.

However, the Court, on its own motion, reconsiders the May 5, 2026 ruling on the motions to compel responses to discovery, to correct its own error.

The

court retains the inherent authority to amend its own orders on its own motion. (Le Francois v. Goel (2005) 35 Cal. 4th 1094, 1107.) The court's inherent authority to reconsider and correct its own orders is constitutionally derived. (Walker v. Superior Court, (1991) 53 Cal.3d 257, 267.) A court "must exercise due consideration before modifying, amending, or revoking its prior order." (Case v. Lazben Financial Co. (2002) 99 Cal.App.4th 172, 189.) A court's inherent power to reconsider interim rulings may be exercised "even in the absence of newly discovered evidence" and "[e]ven without a change of law." (Ziller Electronics Lab GmbH v. Superior Court (1988) 206 Cal.App.3d 1222, 1231, Pinela v. Neiman Marcus Group, Inc. (2015) 238 Cal.App.4th 227, 237.) Thus, the inherent power is distinct from a court's power under CCP § 1008 following a motion for reconsideration. (Kerns v. CSE Ins. Group (2003) 106 Cal.App.4th 368, 389: "Consequently, we hold that the separation of powers doctrine precludes an interpretation of section 1008 that would deprive a trial court of jurisdiction to reconsider its own interim orders sua sponte.")

Motions to Compel Discovery

On August 14, 2025, Defendant served Form Interrogatories, Special Interrogatories, and Request for Production of Documents on Plaintiffs. (Ahaddian Decl., ¶ 3; Exhs. A.) Between September 15, 2025, and November 19, 2025, Plaintiffs' counsel requested four extensions, moving their discovery deadline from the original due date of September 16, 2025, to a new deadline of December 22, 2025. (Id., ¶ 4; Exh B.) Plaintiff's counsel served responses on December 4, 2025, but they had not provided any substantive responses, only objections. (Id., ¶ 5; Exh. C.)

Plaintiffs served boilerplate

objections with no substantive responses. Thus, the motions to compel Plaintiffs' responses to the discovery at issue are granted' responses to be served within 20 days. (See Masimo Corp. v. The Vanderpool Law Firm, Inc., supra, 101 Cal.App.5th at 908.)

Sanctions

Defendants request

sanctions from Plaintiffs. As the motions are granted, the Court grants the

request for sanctions, as no justification has been provided for the failure to provide substantive responses. Thus, Plaintiffs David E. Moch, David J. Moch, Aaron Moch, Jeremy Moch and Jordan Moch are each ordered to pay \$1,060, to Defendants' counsel within 20 days of this order.